

**BEFORE THE FEDERAL MARITIME COMMISSION**

**Docket No. 24-19**

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**PELTON INTERACTIVE, INC.**

**v.**

**FLEXPORT INTERNATIONAL LLC**

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**RESPONDENT'S RESPONSE TO COMPLAINANT'S SECOND MOTION FOR  
MODIFICATION OF THE SCHEDULING ORDER**

**COMES NOW**, Respondent, Flexport International LLC, by and through its undersigned counsel and files this, its Response to Complainant's Second Motion For Modification of the Scheduling Order and in support thereof states as follows:

**I. Preliminary Statement.**

Importantly, Flexport does not object to an extension the Scheduling Order at all. In fact, as the undersigned advised counsel for Peloton, Flexport agrees with the request for the extension and asked to join in the motion.

But Peloton was not interested in submitting a joint motion. Instead, Peloton's counsel, in what has become a tiresome, ongoing game, just wanted to submit an unauthorized and improper Reply to their motion to compel.

This is clearly evidenced by the very motion Peloton has submitted, which is replete with a reiteration of its arguments and a response to Flexport's Opposition.

This is further evidenced by the fact that Peloton's counsel did not provide a copy of the proposed motion until just before it intended to file same – and after Flexport acknowledged that it would join in the request.

After receiving the draft, the undersigned advised Peloton's counsel that obviously

Flexport could not join in the motion since same was clearly an improper attempt to Reply to the motion to compel. Instead, the undersigned suggested that the Parties should instead submit a joint request, noting that “the parties have produced voluminous discovery and have each filed motions to compel which are currently pending before the Commission. They are in the process of scheduling numerous depositions but believe the resolution of the motions would be warranted prior to taking same so as to ensure a complete record.”

Of course, Peloton’s counsel ignored this good faith attempt to resolve this matter without unnecessary motion practice, never bothered to pick up the phone, and just went ahead and filed an unnecessarily argumentative, self-serving motion which in essence was a unauthorized and improper Reply to its motion to compel.

The procedure for non-dispositive motions, such as motions to compel is clear:

**(c) *Response replies.*** The moving party may not file a reply to a response to a non-dispositive motion unless requested by the Commission or presiding officer, or upon a showing of extraordinary circumstances.

46 C.F.R. § 502.71(c).

Peloton has never made any showing or requested leave to file a Reply. Instead, Peloton has taken this opportunity to further delay this proceeding and cause unnecessary work for the Court. Peloton’s submission should also be insulting, as clearly the Court is aware of the pending motions to compel – the very existence of which should serve a sufficient basis to warrant an extension of time, which the Court has already alluded to. There was absolutely no need to burden the Court with a re-hashing of the motion to compel and an improper reply to same.

As such, the motion should be stricken as an improper Reply and counsel for Peloton should be sanctioned for their continued abuse of process.

## II. Discussion.

It is abundantly apparent that Peloton and its counsel are not only engaged in a fishing expedition but a calculated effort to make this frivolous litigation as expensive and time-consuming as possible. The fact that Peloton is even continuing this litigation at all in spite of the overwhelmingly damning evidence it has already produced is telling.

Flexport will not respond at all to the arguments raised by Peloton in their motion, as same should be stricken. If such arguments are to be considered in ruling on the motions to compel, then Flexport respectfully requests the opportunity to properly respond to same in accordance with the Commission's Rules.

But Flexport must address the misrepresentations made by Peloton's counsel in an attempt to misdirect the Court (a pattern which has unfortunately become all too apparent in the course of this litigation).

As set forth in Flexport's Motion to Compel, Peloton's responses to discovery were calculated to give Flexport no choice but to move to compel. Peloton's responses were not just incomplete, they were mostly non-existent and utterly non-compliant. Peloton's objections were likewise frivolous.<sup>1</sup>

And this was after Peloton failed to respond to the discovery requests in the first place and then filed a motion to extend the deadline at the last minute without holding a meet and confer.

The Parties provided responses to each other's discovery requests on December 13, 2024.<sup>2</sup>

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<sup>1</sup> In its response to Flexport's Motion to Compel, Peloton claims to have cured these deficiencies by providing a spreadsheet and interrogatory responses. This is yet another misrepresentation. No supplemental interrogatory responses were ever provided and Peloton's vague references in its response to 10,000 documents can hardly be considered sufficient.

<sup>2</sup> As the Court is aware, Flexport not only provided responses, but a full production of documents which it expended considerable effort to compile before the deadline. Peloton, on the other hand, unilaterally decided that it did not need to produce any documents, despite its own requests demanding production by the same date.

Flexport promptly reviewed the responses, which even a mere glance clearly revealed same to be woefully deficient, and requested a meet and confer – the very next business day.

On December 20, 2024, counsels for the parties held a meet and confer to discuss the alleged deficiencies in their respective discovery responses. Notably, at the conference, counsel for Peloton advised that it had **no issues** with respect to Flexport's responses.

Then, eight (8) days later, on Saturday December 28, 2024, Peloton for the first time raised alleged deficiencies with Flexport's responses, including the time period of the production which Peloton claims was insufficient.

To be clear, at the very beginning of its response to the discovery requests, Flexport set forth in detail its objection to the requested time period. Yet, it was not until **two (2) weeks later** – and only after Flexport raised the deficiencies in Peloton's responses – that Peloton decided to raise this issue.

Even worse, the parties held a meet and confer on January 3, 2025, at which time Peloton raised the issue as to the relevant time period. During this discussion, Counsel for Peloton specifically stated that they could understand Flexport's position and would consider same. Then, without any further word or discussion, Peloton's counsel emailed the undersigned **eleven (11) days later** – the morning Peloton filed its motion to compel – demanding that the undersigned respond by the end of the day whether Flexport would withdraw its objections and supplement its responses.

In comparison, Flexport raised its issues with Peloton's discovery responses on the very next business day following Flexport's receipt of same. Yet, Peloton has repeatedly argued, and continues to argue, that Flexport is somehow responsible for the delays in this litigation. Thus, after delaying the production, and then serving responses which forced Flexport to file a motion

to compel, it is disingenuous at best that Peloton now has the audacity to actually try to place the blame on Flexport for its basis to extend the Scheduling Order deadlines.

And even with all of this delay, Flexport – in the utmost good faith – agreed to join in the motion.

This has to stop. Unfortunately, there is no indication that Peloton’s counsels will cease their games and will continue their unending crusade to inflate the costs of this litigation at the expense of the Commission’s time and Flexport’s wallet.

### **III. Conclusion.**

Based on the foregoing, Flexport respectfully requests that Peloton’s motion be stricken and nothing therein considered with respect to the pending motions to compel. Flexport further requests an award of fees and costs incurred as a result of Peloton’s actions in filing an improper, unauthorized Reply to its motion to compel.

Notwithstanding the foregoing, given the pending motions to compel, Flexport would respectfully request an extension of the Scheduling Order deadlines as set forth in Peloton’s Motion.

Dated: February 6, 2025

Respectfully submitted,

**SPECTOR RUBIN, P.A.**

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**Counsel for Respondent,**  
**Flexport International LLC**

**CERTIFICATE OF SERVICE**

I **HEREBY CERTIFY** that a true and correct copy of the forgoing was served on February 6, 2025, via electronic mail, which shall notify all parties of record on this matter.

By: /s/ Robert Borak  
Robert M. Borak, Esq.